CHAPTER 62 Central Information Commission

The Central Information Commission was established by the Central Government in 2005. It was constituted under the provisions of the Right to Information Act (2005). Hence, it is not a constitutional body.

The Central Information Commission is a high-powered independent body which inter alia looks into the complaints made to it and decide the appeals. It entertains complaints and appeals pertaining to offices, financial institutions, public sector undertakings, etc., under the Central Government and the Union Territories.

Composition

The Commission consists of a Chief Information Commissioner and not more than ten Information Commissioners. They are appointed by the President on the recommendation of a committee consisting of the Prime Minister as Chairperson, the Leader of Opposition[1] in the Lok Sabha and a Union Cabinet Minister nominated by the Prime Minister. They should be persons of eminence in public life with wide knowledge and experience in law, science and technology, social service, management, journalism, mass media or administration and governance. They should not be a Member of Parliament or Member of the Legislature of any State or Union Territory. They should not hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession.

TENURE AND SERVICE CONDITIONS

The Chief Information Commissioner and an Information Commissioner shall hold office for such term as prescribed by the Central Government or until they attain the age of 65 years, whichever is earlier. They are not eligible for reappointment[2].

The President can remove the Chief Information Commissioner or any Information Commissioner from the office under the following circumstances:

1. if he/she is adjudged an insolvent; or
2. if he/she has been convicted of an offence which (in the opinion of the President) involves a moral turpitude; or
3. if he/she engages during his/her term of office in any paid employment outside the duties of his/her office; or
4. if he/she is (in the opinion of the President) unfit to continue in office due to infirmity of mind or body; or
5. if he/she has acquired such financial or other interest as is likely to affect prejudicially his/her official functions.

In addition to these, the President can also remove the Chief Information Commissioner or any Information Commissioner on the ground of proved misbehaviour or incapacity[3]. However, in these cases, the President has to refer the matter to the Supreme Court for an enquiry. If the Supreme Court, after the enquiry, upholds the cause of removal and advises so, then the President can remove him/her.